

8.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	MOTION FOR SANCTIONS Defendant Cerna Healthcare, LLC dba Cerna HomeCare’s Motion for Sanctions is GRANTED in part. Defendant moves for sanctions based on Plaintiff’s incorrect allegation at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants’ conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. However, paragraph 4 of the Complaint stated Plaintiff was 59 years old, which Plaintiff’s discovery responses confirmed. Paragraph 4 states Plaintiff is a “dependent adult” under the Elder and Dependent Adult Civil Protection Act. The motion is unopposed. Plaintiff has filed a motion for leave to amend to state her correct age, set for hearing on 6/2/26. Plaintiff’s counsel has filed a motion to be relieved but the notice of motion does not state a hearing date. Defendant asserts Plaintiff’s incorrect age makes her Elder Abuse claim non-viable and seeks sanctions of \$2,060.00 as well as an order striking Plaintiff’s first cause of action for elder/dependent abuse. The unopposed motion is granted as to monetary sanctions of \$2,060 against Plaintiff’s counsel for making the error as to Plaintiff’s age and failing to promptly correct it, causing Defendant to incur costs to correct the error. The motion is denied as to the request to dismiss the first cause of action. Defendant may bring an appropriate dispositive motion if it believes Plaintiff does not qualify as a dependent adult under the Act.
9.	IRVINE SPECTRUM CENTER LLC VS. N&P LV HOLDINGS LLC 2025-01459549	MOTION FOR TERMINATING SANCTIONS Plaintiff Irvine Spectrum Center, LLC’s Motion for Sanctions is GRANTED in part and DENIED in part. Terminating sanctions are GRANTED against Defendant N&P LV Holdings, LLC. Defendant’s answer to the Complaint is STRICKEN. The court may impose monetary, issue, evidence, or terminating sanctions on a party who misuses the discovery process. (Code Civ. Proc. § 2023.030(a)-(d).) Failing to respond to discovery and disobeying a court order are misuses of the discovery process. (Code Civ. Proc. § 2023.010(d)(g).) Here, Defendant has failed to provide responses and pay the sanction as ordered by this Court. Thus,

		Defendant has failed to respond to discovery and disobeyed a court order. Therefore, Defendant’s conduct is sanctionable. <u>Nonmonetary Sanctions</u> Defendant’s conduct warrants nonmonetary sanctions. Defendant has not responded to either the Motion to Compel or this Motion. Monetary sanctions failed to compel any action from Defendant; thus, nonmonetary sanctions are appropriate. Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 179 Cal.App.4th 1553, 1559.) Defendant was served with the notice of ruling by mail and email on October 14, 2025. (ROA 31.) Thus, Defendant knew of the order and failed to comply. Thus, its failure to comply with this Court’s order is willful. Additionally, Defendant has not opposed this Motion seeking terminating sanctions. Thus, if the threat of terminating sanctions being imposed and a prior court order did not compel Defendant to participate in the action, less severe sanctions would not compel compliance. Therefore, terminating sanctions are appropriate. Accordingly, the Defendant’s Answer is stricken and default is entered against Defendant. <u>Monetary Sanctions</u> “[S]anctions may not be imposed solely to punish the offending party.” [<i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 75.) Imposing additional monetary sanctions would solely punish Defendant because previous monetary sanctions were insufficient to compel compliance. Thus, Plaintiff’s request for monetary sanctions is denied. Plaintiff to give notice.
10.	AYERS VS. BMW OF NORTH AMERICA, LLC 2025-01510262	DEMURRER TO COMPLAINT The hearing on the Demurrer to the Complaint brought by Defendant BMW of North America (ROA No. 15) is VACATED. The Court previously continued this demurrer and ordered compliance with Code of Civil Procedure section 430.41. (ROA No. 19.) Defendant was served this order by email, on April 21, 2026. (ROA No. 54.) Pursuant to this prior order, a declaration establishing compliance with Code of Civil Procedure section 430.41 was due to